EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

SECOND SECTION

DECISION

Application no. 25963/14
Denis SCHMICK
against Turkey

The European Court of Human Rights (Second Section), sitting on 7 April 2015 as a Committee composed of:

Paul Lemmens, *President,*
Robert Spano,
Jon Fridrik Kjølbro, *judges,*
and Abel Campos, *Deputy Section Registrar,*

Having regard to the above application lodged on 17 April 2014,

Having deliberated, decides as follows:

THE FACTS

The applicant, Mr Denis Schmick, is a German national, who was born in 1985 and lives in Betzdorf.

The facts of the case, as submitted by the applicant, may be summarised as follows.

On 3 August 2013 the applicant was arrested in Istanbul, where he was studying as an Erasmus student.

Following his arrest, the applicant was taken to a police station, where he was kept for two days. The applicant, who suffered from a medical condition, stated that he needed to take his medication daily. However, he was allowed access to a doctor solely on the second day of his custody.

During his custody period, the applicant was kept together with nine other detainees in a cell, with no toilet, water basin or bed. The cell was solely equipped with four benches and nine mats. The applicant was allegedly humiliated by the police officers.

COMPLAINTS

The applicant alleged under Article 3 of the Convention that he had been subjected to ill-treatment during his police custody. He further complained under Article 6 that he was not informed of the charges against him and that he could not afford hiring a lawyer. Finally, the applicant also invoked Article 11 of the Convention.

THE LAW

According to the information available to the Court it does not appear that the applicant has exhausted any domestic remedies related to the alleged violation of the Convention. The Court furthermore recalls that, having examined the new remedy before the Constitutional Court, it found that the Turkish Parliament had entrusted that court with powers that enabled it to provide, in principle, direct and speedy redress for violations of the rights and freedoms protected by the Convention, in respect of all decisions that had become final after 23 September 2012, and declared it as a remedy to be used (*Uzun v. Turkey* (dec.), no. 10755/13, 30 April 2013, §§ 68-71). Accordingly, the applicant should avail himself of the new remedy before the Constitutional Court offered by Law no. 6216 (ibidem).

It follows that the application must be rejected under Article 35 §§ 1 and 4 of the Convention for non-exhaustion of domestic remedies.

For these reasons, the Court, unanimously,

Declares the application inadmissible.

Done in English and notified in writing on 30 April 2015.

Abel Campos
Deputy Registrar

Paul Lemmens
President